

# **Tentative Rulings for August 4, 2026**

## **Department 1**

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME               | HEARING NAME                                               |
|-------------|-------------------------|------------------------------------------------------------|
| CVRI2306840 | RODRIGUEZ VS TASTEPOINT | MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT |

**Tentative Ruling:** Appearances requested to discuss:

1. Amount of service award to named plaintiffs (totaling \$45,000).
2. Settlement indicates that attorney fees are \$229,166.67 and that they are 33% of the gross settlement amount, but these figures don't match (33% of \$687,500 is \$226,875).
3. Confirm settlement admonition cost--\$7,909 or \$7,190 (guessing it's the latter from the Hartranft declaration)?
4. No declaration from either defendant or defense counsel.
5. Need to select date for final approval & add it to the order.

2.

| CASE #      | CASE NAME                           | HEARING NAME          |
|-------------|-------------------------------------|-----------------------|
| CVRI2404785 | CESARIO XUM VS ADVANCED MEP SYSTEMS | (9) MOTIONS TO COMPEL |

**Tentative Ruling:** No tentative rulings, appearances requested.

3.

| CASE #      | CASE NAME                           | HEARING NAME                |
|-------------|-------------------------------------|-----------------------------|
| CVRI2404785 | CESARIO XUM VS ADVANCED MEP SYSTEMS | MOTION FOR PROTECTIVE ORDER |

**Tentative Ruling:** No tentative ruling, appearances requested.

4.

| CASE #      | CASE NAME                         | HEARING NAME               |
|-------------|-----------------------------------|----------------------------|
| CVRI2406864 | PORTER VS JOHN CHRISTNER TRUCKING | HEARING RE: FINAL APPROVAL |

**Tentative Ruling:** Declaration of Jennifer Forst states there were two valid requests for exclusion or order lists two names but then says there was one timely request for exclusion (order, ¶ 9). Need to clarify who is excluded.

5.

| CASE #      | CASE NAME             | HEARING NAME                                                                |
|-------------|-----------------------|-----------------------------------------------------------------------------|
| CVRI2500129 | RAMIREZ VS LIFEHEALTH | MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT BY REYNA RAMIREZ |

**Tentative Ruling:** Appearances requested:

1. Is plaintiff's counsel aware of other actions making similar claims?
2. No declaration from defense counsel.
3. No comparison of Legal Aid at Work vs other potential cy pres recipients.
4. No declaration from Legal Aid at Work.
5. No declarations from counsel about relationship(s) with Legal Aid at Work (Lazar declaration says only that the parties have agreed to use Phoenix).
6. No explanation of bidding process to select Phoenix Class Action Administration Solutions as administrator.

7. Revise proposed order to add that opt out and objection forms will be returned to the administrator only (and not to the court).
8. Need to select date for hearing on final approval.
9. No declaration from defendant as to class members' likely age, education, experience, and fluency in English.
10. Revise notice to clarify that the Court has only determined that there is sufficient evidence to suggest that the settlement is fair, adequate, and reasonable, but that a final determination will be made at the final approval hearing.
11. Revise notice to include full title and date of filing of document to which the settlement agreement is attached (declaration of Megan R. Lazar etc filed May 27, 2026). Add to objection and exclusion forms the name and address of the administrator and the response deadline.

6.

| CASE #      | CASE NAME             | HEARING NAME                                                                |
|-------------|-----------------------|-----------------------------------------------------------------------------|
| CVRI2500129 | RAMIREZ VS LIFEHEALTH | JOINDER TO MOTION FOR<br>PRELIMINARY APPROVAL OF CLASS<br>ACTION SETTLEMENT |

**Tentative Ruling:** See related tentative ruling.